

Evidence Act, 1974

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Amending Acts

1. Evidence (First Amendment) Act, 2034 2034.5.27

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2. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7

3. Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074 2074.6.30

4. Evidence (Second Amendment) Act, 2077 2077.2.20

5. Some Acts Relating to Criminal Offences and Criminal Procedure Amendment Act, 2079 2079.6.31

Act No. 24 of the year 2031

An Act Made to Amend and Consolidate Laws Relating to Evidence

Preamble: Whereas it is desirable to amend and consolidate the Nepal laws relating to evidence and to reform it in accordance with the times,

Therefore, His Majesty King Birendra Bir Bikram Shah Dev, with the advice and consent of the Rastriya Panchayat, has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Evidence Act, 2031".

(2) This Act shall apply to proceedings of cases in court.

(3) This Act shall come into force from the 1st day of Baisakh, 2032. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

Amended by the Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074.(a) "Court" means the Supreme Court, High Court or District Court, and that word also denotes any other court, judicial body or officer authorized by law to conduct proceedings and decide particular types of cases.

(b) "Expressed" or "stated" means expressed or stated orally or in writing or by gesture. Amended by the Second Amendment.(c) "Public document" means a document which is deemed to be a public document under the prevailing law, and that word also denotes the digital or electronic form of such document.

Chapter-2

Facts Which May be Proved and Facts Which Need Not be Proved

3. Facts Which May be Proved: (1) A court shall only admit evidence of facts in issue and of facts relevant to such facts. Explanation: "Relevant fact" means a fact which assists in proving or disproving a fact in issue. 4.

Facts Which Need Not be Proved: (1) Evidence need not be given of any of the following facts:

(a) Any fact which is admitted in writing by one party to the case at the instance of the other party,

Provided that, if the court considers it appropriate, it may also take evidence on such fact.

(b) Facts of which the court shall take judicial notice under section 5.

(2) A court need not take any evidence to presume any fact under sections 6 and 7. Provided that, before presuming any fact under section 7, the court may take necessary evidence. 5.

Facts of Which Court Shall Take Judicial Notice: Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.(1) A court shall take judicial notice of the following facts: - (a) The territory of Nepal, (b) The Constitution of Nepal and Nepal law, (c) The national flag of Nepal, Inserted by the Second Amendment.(c1) The national anthem of Nepal, Inserted by the Second Amendment.(c2) The coat of arms of Nepal, (d) The oath of the President, (e) The date of authentication of a Bill, (f) Notices published in the Nepal Gazette. (2) A court may take judicial notice of facts of common knowledge which cannot be the subject of dispute. Provided that, if a party to the case requests the court to take judicial notice of a fact under this sub-section, the court may order that party to produce necessary evidence thereof, and until evidence is produced to the satisfaction of the court, the court may refuse to take judicial notice of that fact. Inserted by the Second Amendment.(2a) Except in the case of sub-section (2), a party shall not be required to produce evidence on matters of which the court takes judicial notice. (3) For taking judicial notice under this section, the court may have recourse to necessary books or documents. 6. Facts Which Court Shall Presume: Unless the contrary is proved, - (a) The court shall presume that any property standing in the name of any co-parcener among joint family members is joint family property. (b) The court shall presume that all persons having possession or enjoyment of property of two or more persons have equal rights over it. (c) The court shall presume that matters recorded in registers, records or documents required by law to be kept in any court or government office are correctly recorded. Amended by the Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074.(d) Except where the contrary is proved, a child born in the following circumstances shall be presumed to be born of the married husband: - (1) Born one hundred and eighty days after the date of marriage, (2) Born within two hundred and seventy-two days from the date of the husband's death or the termination of the marital relationship.

Inserted by the Second Amendment.(d1) The court shall presume that a child born through artificial insemination with the consent of the husband and wife is born of the married husband.

(e) The court shall presume that a document known to have been published, prepared or certified by any court, government office or officer, or by any person authorized under Nepal law, is published, prepared or certified by that court, office, officer or person. Inserted by the Second Amendment.(e1) In the case of a contract or document made through digital or electronic transaction, the court shall presume that the contract or document was made in due form. Inserted by the Second Amendment.(e2) In the case of a transaction made with a digital or electronic signature, the court shall presume that the signature was made in due form.

(f) The court shall presume that a law or judgment of a foreign state, which is known to be published by the government of that state or by an officer authorized by such government, and which is published in a printed book or periodical, is correctly published. Inserted by the Second Amendment.(ch) The court shall presume that evidence received from the government of a foreign state has been correctly received. Inserted by the

Some Acts Relating to Criminal Offences and Criminal Procedure Amendment Act, 2079.(j) If a person throws, sprinkles, pours, or in any other manner uses acid or other inflammable substance on the body of another person causing physical harm, or causes another person to consume it, the court shall presume that the person did the act with the intention or knowledge of causing death or grievous hurt to that person. 7. Facts Which Court May Presume: Unless the contrary is proved, -

(a) If stolen property is found with a person, the court may presume that such person stole the property or knowingly purchased stolen property. Provided that, if such person shows a reasonable reason for the property being in his possession, or if considering the nature of that person's business or transaction it appears that the property could have come into his possession without his knowledge of it being stolen, the court shall not make such presumption.

(b) If a person, when ordered by the court to produce a document in his possession, fails to produce it, the court may presume that if the document were produced, it would be of a nature to prove against him.

(c) The court may presume any other fact which can be reasonably presumed considering the ordinary course of human conduct or business. Chapter 3

Facts Which May and May Not be Taken as Evidence

8.

Facts Which May be Taken as Evidence: While taking evidence in a case under section 3, the facts which may be taken as evidence under this Chapter and other statements made by a witness before the court shall be taken as evidence Deleted by the Second Amendment.. 9. Statement Made by a Party: (1) Any statement made by any party to the case may be taken as evidence against him.

(2) Notwithstanding anything contained in sub-section (1):

(a) In a criminal case, any statement made by an accused regarding the accusation against him elsewhere than in court may be taken as evidence if the court determines as follows:

(1) At the time of making the statement, the accused was in a conscious state and capable of understanding what he was saying and doing.

(2) The statement was not made by compelling him, or by subjecting him or anyone else to torture or threat of torture, or by placing him in a situation against his will to make such statement.

(3) In connection with proceedings to be conducted by a public officer regarding that accusation, no such threat or promise of belief was given which might cause him to make the statement falsely, and he reasonably believed that such officer had the authority and power to implement that threat or promise.

(b) Matters referred to in clauses (a) to (d) of section 12 and any matter admissible under any other section of this Chapter, even if stated by the party himself, may, if he so desires, also be taken as evidence in his favor.

(c) Any statement by a party agreeing to abandon his claim wholly or partially, or to pay any sum of money or provide any service to any person, for the purpose of settlement, shall not be taken as evidence against him.

(3) For the purposes of this section, a statement made by the following persons in the following manner shall be deemed to be a statement made by the party: -

(a) Any statement made by an heir of the party, or by a person representing the party in the case under the

prevailing Nepal law, in the capacity of such heir or representative,

(b) Any statement made by a person authorized to do any act on behalf of the party, in the course of such authority and regarding the subject matter of his authority,

(c) Any statement made by a person who had ownership or financial interest in any subject matter of the case prior to the party acquiring any right in such subject matter, while such ownership or financial interest existed, regarding that matter, or

(d) Any statement made by a person, while joint ownership or financial interest of the party and such other person existed in the subject matter of the case, regarding that matter.

Inserted by the Second Amendment.9a. Accomplice's Implication (Appeal): If, in an offence committed by two or more persons, any of such persons, having confessed to the court, implicates (appeals) other accused, such implication (appeal) may be taken as evidence if corroborated by other evidence. 10. Statement Made on the Occasion (Res Gestae): (1) A statement made on the occasion, or immediately before or after, any act, event or state of affairs, by any of the following persons, may be taken as evidence: -

(a) A person who did that act, or directly saw or knew of that act, event or state of affairs, or

(b) A person who was a victim of that act, event or state of affairs.

(2) A statement made by a person while such physical or mental condition clearly existed, expressing that condition, may be taken as evidence. Amended by the Second Amendment.11. Dying Declaration: A statement made by a person while in a state of impending death, being conscious, regarding the cause of his death, before his death, may be taken as evidence. 12. Statements Made by Persons in Certain Circumstances Regarding Specific Matters: The following statements made by a person who is dead, missing, or incapable or not obliged to give evidence under this Act, or who cannot be produced in court due to the contrivance of the opposite party as proved by a party to the case, or who is in a state where summons cannot be issued by the court, or who, in the opinion of the court, is deemed unsuitable to be produced due to unnecessarily excessive expense or time, may be taken as evidence: -

(a) Any statement made contrary to his own right, interest or benefit,

(b) Any statement made in writing which could subject him to legal proceedings or criminal accusation,

(c) Any statement made in writing before the filing of the case regarding any public right or custom of which he had special knowledge, or

(d) Any statement made before the filing of the case regarding any matter of relationship of which he had special knowledge. 13. Matters Recorded in Public Documents etc.: (1) Matters recorded in any public document by a public servant in the course of performing the duties of his office, and by any person in the course of performing his duty prescribed by law, may be taken as evidence.

(2) Matters stated in maps, charts or statistical documents published by the Government of Nepal, or by a person authorized by the Government of Nepal, or by a public institution, and which are publicly available for sale, may be taken as evidence. Inserted by the Second Amendment.13a.

Details Recorded Through Audio-Visual Medium (Video Conference): (1) Matters recorded in an electronic record through an audio-visual medium may be taken as evidence. (2) For the purposes of sub-section (1), the court may keep a record of matters recorded through an audio-visual medium in the same form or by

transcribing them. 14. Matters Recorded in Regularly Maintained Accounts, Ledgers, Books or Other Registers: Any matter regularly entered or recorded in an account, ledger, Amended by the Second Amendment. book, records maintained through digital or electronic medium, or other register, kept regularly in the course of any work, proceedings or business, or any letter, receipt, invoice or other document written in connection with such work, transaction or business, may be taken as evidence. 15. Matters Written in Books or Articles: (1) Matters relating to the law or judgment of a foreign state recorded in a book published by the government of that state, or by a person or institution authorized by such government, regarding such law or judgment, may be taken as evidence. (2) Matters recorded in a published book or article written by a person reputed to be learned in that subject may be taken as evidence. 16. Statistics, Lists, Statements etc. of Specific Types: Matters recorded in data, lists, schedules, statements or articles regularly published for the use of persons engaged in a particular profession may be taken as evidence. 17. Statements Made by a Witness in Other Cases: Statements made by a witness before a court in a case may be taken as evidence in another case only in the following circumstances: (a) If the witness is dead, missing, or has become disqualified to give evidence under this Act, or (b) If the witness has become entitled to privilege under this Act such that he is not bound to give evidence on that matter, or (c) If the party to the case proves that the witness cannot be produced in court due to the contrivance of the opposite party, or (d) If the witness is in a state where summons cannot be served on him, or (e) If, in the opinion of the court, producing the witness would involve unnecessary delay or expense and is unsuitable. 18. Amended by the Second Amendment. Documents Prepared in the Course of Investigation or Inquiry: Any matter recorded in a document prepared in accordance with the prevailing Nepal law in the course of Amended by the Second Amendment. investigation or inquiry regarding any act, event or state of affairs, may be taken as evidence if the person who stated that matter appears before the court as a witness and gives testimony.

Amended by the First Amendment. Provided that,

(a) Amended by the First Amendment. If there is no dispute between the parties to the case regarding any matter recorded by the relevant expert in an autopsy report, or if that matter does not appear to be inconsistent with any evidence or any circumstance on record, such matter may be taken as evidence even if the expert does not appear in court. Amended by the Second Amendment. (b) Even if the relevant person has not appeared before the court and given testimony, documents, papers, site reports (muchulka), physical evidence, examination reports of any subject, expert opinions or reports, electronic evidence or statements etc. collected by an authorized officer for the purpose of remand (thunchhek) according to law may be taken as evidence as immediately available evidence (tatkai prapat praman). 19. Certificate or Authenticated Copy: A certificate or authenticated copy given in accordance with the prevailing Nepal law by a person legally bound to give such certificate or authenticated copy may be taken as evidence. 20. Report: A note or report written in the course of performing his duty by a person legally bound to prepare and Amended by the First Amendment. submit a note or report regarding any act, event or state of affairs to a particular place or office in accordance with the prevailing Nepal law may be taken as evidence. Provided that such note or report has been duly Amended by the First Amendment. submitted and registered at the relevant place or office. Amended by the Second Amendment. 21. Other Admissible Documents: In addition to the documents mentioned in sections 9 to 20, any other document, if any, may be taken as evidence. Amended by the Second Amendment. 22. Physical Evidence (Dashai Praman): (1) Any mark, seal, sign, stain found at the scene of the incident in the course of investigation, or other thing revealing the identity of the victim or accused, may be taken as evidence.

(2) Any object related to the case, identified by a witness appearing in court, may be taken as evidence in the

form of physical evidence (dashi). 23. Personal Opinion: (1) If the court needs to determine a matter regarding foreign law, science, art, handwriting or fingerprints Amended by the Second Amendment., the opinion of an expert on that subject may be taken as evidence.

Explanation: For the purposes of this section, "expert" means a person who has acquired special knowledge on a subject through special study, training or experience. (2) If the court needs to determine a matter regarding a person's handwriting Amended by the Second Amendment., the opinion of a person who has had the opportunity to see that person's handwriting and is familiar with it may be taken as evidence. (3) If the court needs to determine a matter regarding any religious, caste or public right or custom, the opinion of a person who is in a position to have special knowledge of such right or custom may be taken as evidence. (4) If the court needs to determine whether a person has a relationship with another person, the opinion of a person who is in a position to have special knowledge of such relationship may be taken as evidence. (5) If the court needs to determine the meaning of a particular word or words used in a particular place, the opinion of a person who is in a position to have special knowledge thereof may be taken as evidence. (6) If an opinion of a person is taken as evidence under this section, matters supporting or rebutting such opinion and the basis of such opinion may also be taken as evidence. (7) An opinion expressed by a person may be taken as evidence under this section only if that person himself appears in court as a witness. Provided that, for the opinion expressed by an expert on any subject in a book or article, or the basis of such opinion, to be taken as evidence, it shall not be mandatory for the author of that book or article to appear in court. 24. Facts Which Cannot be Admitted as Evidence: (1) Evidence of good or bad character of parties in a case shall not be taken as evidence.

Provided that, if the character of a party is itself a fact in issue, evidence relating to his character may be taken as evidence. (2) If a person is prohibited from disclosing any matter under section 41, 43 or 45, even if such person discloses such matter, it shall not be taken as evidence. (3) If a document which a court has ordered a party to produce is not produced by that party, such document shall not be admissible in evidence in that case without the consent of the other party or the court. (4) Besides the matters specifically mentioned in this section, any other matter which is not admissible under this Act or other prevailing law shall not be taken as evidence. Chapter-4 Burden of Proof 25. Burden of Proving Guilt: In a criminal case, the burden of proving the guilt of the accused Deleted by the Second Amendment. shall be on the plaintiff. 26. Burden of Proving Claim: In a civil case, the burden of proving his claim Inserted by the Second Amendment. or defense shall be on the plaintiff. 27. Burden on Defendant to Provide Evidence: (1) If a defendant claims any matter resulting in mitigation or exemption from punishment, or release from punishment, under the prevailing Nepal law, the burden of proving that matter shall be on him. (2) The burden of proving that anything required to be given or delivered to the plaintiff under the prevailing Nepal law has been given or delivered in accordance with that law shall be on the defendant. 28. Burden of Proving a Particular Fact: Except where any Nepal law provides that the burden of proving a particular fact lies on a particular person, the burden of proving that fact shall lie on the person who desires the court to believe in its existence. 29. Burden of Proving Evidence to Rebut a Presumption of Court: If any party wishes to rebut any fact presumed by the court under this Act, the burden of proving that rebuttal shall be on that party. 30. Burden of Proving Fact within Special Knowledge: Any fact which is within the special knowledge of a party shall be proved by that party. 31. Burden of Proving a Fact when Another Fact Must be Proved First: If, for a fact to be admitted in evidence, another fact must first be proved, the burden of proving that other fact shall be on the party who desires to adduce evidence of the first fact. 32.

Burden of Proving that a Person is Alive: If the question arises whether a person is alive or dead, after the

expiry of the period during which his death can be presumed under the law Amended by the Second Amendment., if it is proved that no information has been received about him, the party asserting that he is alive shall prove that fact. 33. Burden of Proving Ownership of Property in Possession or Enjoyment: If the question arises whether a person has ownership of property in his possession, enjoyment or use, the party asserting that the person does not have ownership of that property shall prove that fact. Chapter-5 Estoppel 34. Estoppel: (1) If a person has, by writing, speech or conduct, caused another person to believe a fact to be true, or allowed him to believe it, and has thereby caused or allowed that other person to do or forbear from doing any act, such person shall not be allowed to deny or refute that fact in any case between him and that other person. Provided that this section shall not apply to a point of law. (2) The matters mentioned in sub-section (1) shall also apply to persons acquiring any right in the subject matter of the case from the persons mentioned in that sub-section. Chapter-6 Proof of Documents 35. Proof of Documents: (1) A document or a matter recorded in a document must be proved by producing the document itself. Inserted by the Second Amendment.

Explanation: For the purposes of this section, "document" also includes any subject matter in a digital or electronic record, or its printed or stored optical or electro-magnetic form, or published or republished digital or electronic material, or a copy of such material. (2) Notwithstanding anything contained in sub-section (1), in the following circumstances, a document or a matter recorded in a document may be proved by a photo, copy, or duly certified copy obtained according to law, or by oral evidence: (a) If it is proved that the document is in the possession of the person against whom it is sought to be proved, or (b) If the person in whose possession the document is cannot be served with a summons by the court, or if, after service of summons, that person fails to produce the document, or (c) If it is proved that the document is lost or destroyed, or (d) If the document cannot be easily moved and produced in court, or (e) If, by the nature of the document, it is in such a condition that it would not remain with the party seeking to produce it. Provided that, in the case of a document under this clause, if the party can obtain a certified copy according to law, it shall be mandatory to produce such copy. (3) Amended by the Second Amendment. Notwithstanding anything contained in sub-sections (1) and (2), decisions or orders made by the Government of Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or records kept Inserted by the Second Amendment. may be proved by producing a document certified by the relevant officer under the prevailing Nepal law. 36. Determining Signature or Seal: (1) If the question arises whether a document was written or sealed by a person, the court may require that person to write or seal on another paper, and compare that with the signature or seal, or with the signature or seal on any other document of that person, and determine the matter. (2) If the signature or seal cannot be determined by comparison as mentioned in sub-section (1), the court may determine the matter by other evidence. (3) Nothing in this section shall preclude the court from taking the opinion of an expert on signature or seal. Chapter-7 Oral Evidence 37.

Oral Evidence: (1) Except where a document is required to be produced under this Act, facts may be proved by oral evidence. (2) Oral evidence must be direct; that is, if evidence is sought to be given of a fact which can be perceived by seeing, hearing or with the aid of any sense, the person who directly saw, heard or perceived it must give oral evidence regarding it. Explanation: For the purposes of this sub-section, oral evidence given before a court by a person who heard or knew of a matter at the time it was expressed, which is admissible under section 10, 11 or 12, appearing as a witness, shall also be considered direct evidence. Inserted by the Second Amendment. Chapter-7A. Presentation of Evidence 37a. Taking Oral Evidence through Audio-Visual Dialogue: If the court deems it appropriate, it may take oral evidence through audio-visual dialogue. 37b. Evidence Must be Presented: The plaintiff shall mention all his witnesses, documents and physical evidence, as far as available, in the complaint or plaint, the accused in his

statement, and the defendant in the written statement or counterclaim. 37c. Party Must Produce Witnesses: (1) The relevant party shall produce his witness on the date fixed by the court. (2) Notwithstanding anything contained in sub-section (1), in a particular case, at the time of filing such case, if the defendant is present, the plaintiff or the defendant or both parties shall not be precluded from producing their respective witnesses or experts before the court. Chapter 8 Examination of Witnesses 38. Persons Who May be Witnesses: Any person, including a lunatic, or an accomplice, may be a witness, except a person whom the court determines, due to tender age, extreme old age, physical or mental illness or other similar cause, to be unable to understand the questions put to him or to give rational answers thereto. 39. Testimony of a Person Unable to Speak: A person unable to speak may give testimony by writing or by gestures that can be understood by others. 40. Relatives of a Party Not Bound to Give Testimony: Notwithstanding anything contained in other sections of this Act or other prevailing Nepal law, the mother, father, son, daughter, husband or wife of a party shall not be bound to give testimony against that party. 41.

Confidential Communication between Husband and Wife: (1) A husband shall not be bound to disclose any communication made to him by his wife, or a wife to disclose any communication made to her by her husband, during the subsistence of their marital relationship, or to present correspondence exchanged between them during that time. (2) Except in a case between a husband and wife, or in a criminal case where the Government of Nepal is the plaintiff and which is instituted in connection with an offence committed against such husband or wife, such communication or correspondence shall not be disclosed or presented without the consent of such husband or wife. 42. Judge Not Bound to Disclose Acts Done in Capacity as Judge: Except where otherwise ordered by a higher court, a person shall not be bound to answer any question regarding any act done or matter known by him in the capacity of a judge in court. Provided that, a judge may be examined as a witness regarding any event or other matter that occurred in court before him while acting in his capacity as a judge. 43. Unpublished Government Documents in Government Office Not to be Disclosed: Except with the permission of the departmental head, a person shall not present any unpublished confidential document related to government business kept in a government office, or disclose any matter thereof. 44. Government Servant Not Bound to Disclose Information Received: If a government servant feels that disclosing information he has obtained in the trust of his office would be against the public interest, he shall not be bound to disclose such information. 44a. Police Officer Not Bound to Disclose Source of Information Regarding Offence: A police officer shall not be bound to disclose the source of information received by him in any manner regarding the commission of an offence. 45. Legal Practitioner Not to Disclose Information Given by Client: (1) Without the written consent of the client who appointed him, a legal practitioner shall not disclose any information given to him by his client or his heir, or the contents of any document known to him, or any advice given by him, in the course of or for the purpose of his appointment.

Provided that-

(a) A legal practitioner may disclose any information given to him with the intention of performing a legal work.

(b) If, after the appointment of a legal practitioner, an offence has been committed and he comes to know of it, he may disclose that matter. Explanation: For the purposes of this section, "legal practitioner" means a person authorized to practice law under the prevailing law.

(2) The restriction imposed on a legal practitioner under sub-section (1) shall continue even after the termination of his appointment by that party in the capacity of legal practitioner, and such restriction shall also

apply to the clerk, servant and interpreter of the legal practitioner.

(3) If a party causes any legal practitioner on his behalf to give any testimony regarding any information as mentioned in sub-section (1), that party shall be deemed to have consented to the disclosure of such information or matter for the purposes of that sub-section. 46. Party Not Bound to Disclose Communication Between Him and His Deleted by the Second Amendment. Legal Advisor: A person shall not be bound to disclose what communication or information was exchanged between him and his Deleted by the Second Amendment. legal advisor. Provided that, if he himself wishes to disclose any such information in court, he shall also be required to disclose any other matter related thereto that the court deems necessary to clarify it. 47. Witness Bound to Answer: A witness shall not be entitled to refuse to answer any question put to him in court on the ground that the answer may incriminate him. Provided that, except for proceedings for perjury, such witness shall not be arrested or prosecuted on the basis of any answer given under compulsion, and such answer shall not be admissible as evidence in any other criminal case. 48. Producing and Examining Witnesses: Subject to the prevailing Nepal law, witnesses shall be produced and examined in the order determined by the court Amended by the Second Amendment.. 49. Procedure for Examining Witnesses: (1) When examining a witness, the court shall administer an oath to the effect that, mindful of faith and conscience, he will give true testimony regarding what he has seen, known or heard.

(2) A witness shall be examined in the presence of all parties to the case.

Provided that, a witness shall be examined in the presence of the parties who are present in court on the date and time fixed for examination.

(3) A witness shall be examined in such a way that one witness cannot hear the testimony of another.

(4) If, for any reasonable cause, it appears necessary to re-examine a witness who has already been examined once, he may be examined further only on matters not previously clarified.

(5) The statement of a witness shall also be signed by the parties to the case. If any party does not sign, the judge shall note that fact and sign himself. 50. Examination-in-Chief and Cross-Examination: (1) When a witness is examined, the party on whose behalf the witness is may conduct an examination-in-chief of him. Thereafter, the other party may, if he wishes, cross-examine that witness.

(2) After the cross-examination under sub-section (1), the party on whose behalf the witness is may re-examine him. Provided that, when a party re-examines his witness under this provision, he may only examine on matters arising out of the cross-examination by the opposite party.

(3) Notwithstanding anything contained in the proviso to sub-section (2), with the permission of the court, a party may ask questions on any new matter when re-examining his witness. Provided that, if any new matter is asked about accordingly, the opposite party may further cross-examine the witness on that matter.

(4) When a party conducts an examination-in-chief or re-examination of his witness, leading questions suggesting the desired answer shall not be asked if the opposite party objects. Provided that, such questions may be asked with the permission of the court.

(5) When granting permission to a party to ask a leading question to his witness under the proviso to sub-section (4), the court shall grant permission only if it considers that the question is introductory, undisputed, or that the matter related to the question has been fully proved. Inserted by the Second Amendment.(5a) If an accused implicates (appeals) another accused during his statement, the co-accused so implicated may be given an opportunity to cross-examine him to the extent of the implication made.

Inserted by the Second Amendment.(5b) If the co-accused making the implication under sub-section (5a) is on regular bail, bail, or in detention pending trial, a date shall be fixed for his appearance before the judgment of the case, and on that date, the accused so implicated shall be given an opportunity to cross-examine him.

(6) Amended by the Second Amendment.Notwithstanding anything contained elsewhere in this section, if, when a witness is examined, the party on whose behalf the witness is makes a written request that the court, rather than that party, conduct the examination, the court itself shall ask the necessary questions and record the answers, and thereafter the other party may, if he wishes, cross-examine that witness. Provided that- (a) If the court conducts an examination of a witness under this sub-section, the party on whose behalf the witness is shall not be entitled to conduct an examination-in-chief or re-examination. (b) A party shall not be entitled to examine some of his witnesses himself under clause (a) and to request under this clause that some be examined by the court.

51. Court May Disallow Improper Questions to Witness: The court may disallow questions which are of a nature to unnecessarily insult or annoy a witness.

52. Examining and Cross-Examining Expert as a Witness: If it becomes necessary to determine a matter relating to handwriting, fingerprints, foreign law, science, customs, Amended by the Second Amendment.art, a subject requiring scientific or technical examination, or other similar subjects, the court may examine as a witness a person who has special expertise, experience or training in that matter. If the court examines an expert as a witness accordingly, the party to the case must be given an opportunity to cross-examine him under this Act.

Inserted by the Second Amendment.52a. Provision for Examining Expert Witness: (1) Notwithstanding anything contained elsewhere in this Act, if an expert witness cannot appear to testify on the scheduled day for his testimony and written information to that effect is received, the court may order such expert to appear for testimony at a suitable time. (2) Notwithstanding anything contained in sub-section (1), if, in a case, the expert who gave the expert opinion dies or cannot be examined for any other reason, and it is